18 U.S.C. § 2257 COMPLIANCE CHECKLIST

FEDERAL RECORD-KEEPING REQUIREMENTS FOR PRODUCERS OF SEXUALLY EXPLICIT MATERIAL

Disclaimer: *This document is provided for informational and template purposes only and does not constitute legal advice. You must consult with a qualified attorney to ensure your specific operations comply with 18 U.S.C. § 2257 and 18 U.S.C. § 2257A.*

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1. PRIMARY RECORD-KEEPING OBLIGATIONS

Every producer of sexually explicit visual depictions is required to maintain specific records for all performers depicted. Failure to maintain these records can result in severe federal criminal and civil penalties.

- ☐ **Cross-Indexed System:** Are your records cross-indexed by the performer's legal name, any stage names/aliases, and the title/identifying number of the specific content?
- ☐ **Secure Storage:** Are the physical or digital records maintained securely in a format that can be produced to federal inspectors upon valid request?
- ☐ **Retention Period:** Are you committed to retaining these records for a minimum of seven (7) years from the date the specific depiction was produced?

2. PERFORMER IDENTIFICATION & VERIFICATION

Before any production begins, you must obtain and verify the performer's government-issued identification.

- ☐ **Original ID Inspection:** Have you visually inspected the *original*, unexpired government-issued photo identification (e.g., Passport, State ID, Driver's License) of the performer?
- ☐ **Photocopy Maintenance:** Have you retained a clear, legible photocopy (or high-resolution digital scan) of the verified identification?

- ☐ **Name Verification:** Does the legal name on the identification exactly match the name recorded in your compliance files?
- ☐ **Age Verification:** Have you definitively verified through the identification that the performer was at least 18 years of age at the exact time the depiction was produced?

3. REQUIRED RECORD COMPONENTS

Each performer's file must contain the following specific information.

- ☐ **Legal Name:** Full legal name of the performer as it appears on their ID.
- ☐ **Aliases:** Every stage name, alias, or moniker used by the performer.
- ☐ **Date of Birth:** Verified date of birth.
- ☐ **Identification Details:** Type of ID, ID number, and the issuing authority.
- ☐ **Production Details:** Date(s) of production and the specific titles/file names of the content in which the performer appears.

4. PUBLIC COMPLIANCE STATEMENT

The law requires a specific statement to be affixed to the content or the platform where the content is hosted.

- ☐ **Statement Inclusion:** Is a 2257 compliance statement permanently affixed to the website, platform, or the physical media distributing the content?
- ☐ **Custodian of Records:** Does the statement clearly identify the full legal name (or registered corporate entity) of the Custodian of Records?
- ☐ **Address of Records:** Does the statement provide a valid physical street address (P.O. Boxes are not legally sufficient without an accompanying physical address) where the records are maintained?

CUSTODIAN OF RECORDS DESIGNATION

Name of Custodian: _____

Physical Address of Records: _____

Signature of Custodian: _____ Date: _____